SITE INTELLIGENCE

CIL Liability Assessment

Community Infrastructure Levy Applicability, Calculation & Exemption Analysis

Hole Lane, Bentley, Farnham, Hampshire GU10 5XX

PREPARED FOR

Private Developer Client

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ABBREVIATIONS

Abbreviation	Full Term
BCIS	Building Cost Information Service (RICS)
BNP	Bentley Neighbourhood Plan (2016, modified 2025)
CIL	Community Infrastructure Levy
EHDC	East Hampshire District Council
EUC	Existing Use Credit (Regulation 40)
GIA	Gross Internal Area (measured to RICS standards)
Ic	RICS CIL Index at Charging Schedule adoption
IFS	Infrastructure Funding Statement
Ip	RICS CIL Index at date of planning permission
JCS	Joint Core Strategy (East Hampshire, 2014)
LPA	Local Planning Authority
NPPF	National Planning Policy Framework
PPG	Planning Practice Guidance (CIL section)
S106	Section 106 Agreement (TCPA 1990)
SANG	Suitable Alternative Natural Greenspace
SAMM	Strategic Access Management and Monitoring
SDNP	South Downs National Park
SPB	Settlement Policy Boundary
TCPA	Town and Country Planning Act 1990

HOW TO READ THIS REPORT

This CIL Liability Assessment determines whether the Community Infrastructure Levy applies to the proposed development at Hole Lane, Bentley, calculates the likely liability, and identifies any available exemptions or reliefs that could reduce the charge.

Key Questions Answered

- **1.** Does CIL apply to 4 new dwellings on garden/paddock land?
- **2.** How much is the CIL liability and what range of figures should the client budget for?
- **3.** Can the liability be reduced through self-build exemption, phasing, or design changes?
- **4.** When must CIL be paid, what forms are required, and what happens if deadlines are missed?
- **5.** What Section 106 obligations apply alongside CIL?

CIL Liability Verdict

CIL STATUS: LIABLE — SIGNIFICANT

Estimated CIL liability: £141,696 to £177,120

Central estimate: £159,408 (at indexed rate of £295.20/m²)

Four new dwellings on garden land with zero existing floorspace to offset — full CIL applies.

Self-build exemption may be available with careful structuring — see Section 6.

Liability Range

CIL liability is presented as a Low / Central / High range because the final figure depends on confirmed GIA measurements (which will change at detailed design stage) and the RICS CIL Index at the date of planning permission (which is published annually). The Central estimate is the best current projection based on indicative floor areas of 135 m² per dwelling.

What This Report Is NOT

- This is NOT legal advice on CIL appeals or liability disputes
- This is NOT a CIL Form 1 submission — the council requires its own forms
- This is NOT a Section 106 negotiation — S106 obligations are separate from CIL
- This is NOT a valuation or viability assessment

1. INTRODUCTION

This CIL Liability Assessment has been prepared by Site Intelligence™ (a service of PF & Co Construction Ltd) for the proposed erection of 4 detached dwellings at Hole Lane, Bentley, Farnham, Hampshire GU10 5XX.

The site falls within the charging area of East Hampshire District Council (EHDC). CIL was introduced by the Planning Act 2008 and is administered under the Community Infrastructure Levy Regulations 2010 (as amended). EHDC adopted its CIL Charging Schedule on 25 February 2016, with the schedule taking effect on 8 April 2016. The charging schedule applies to development within the EHDC area outside the South Downs National Park (where the SDNP Authority is the separate charging authority).

CIL is a non-negotiable charge levied on new development to fund local infrastructure. Unlike Section 106 agreements, CIL rates are fixed by the charging schedule and cannot be negotiated on a site-by-site basis. Failure to submit CIL forms before commencement results in loss of instalment rights and potential surcharges of up to 40–50% of the total liability.

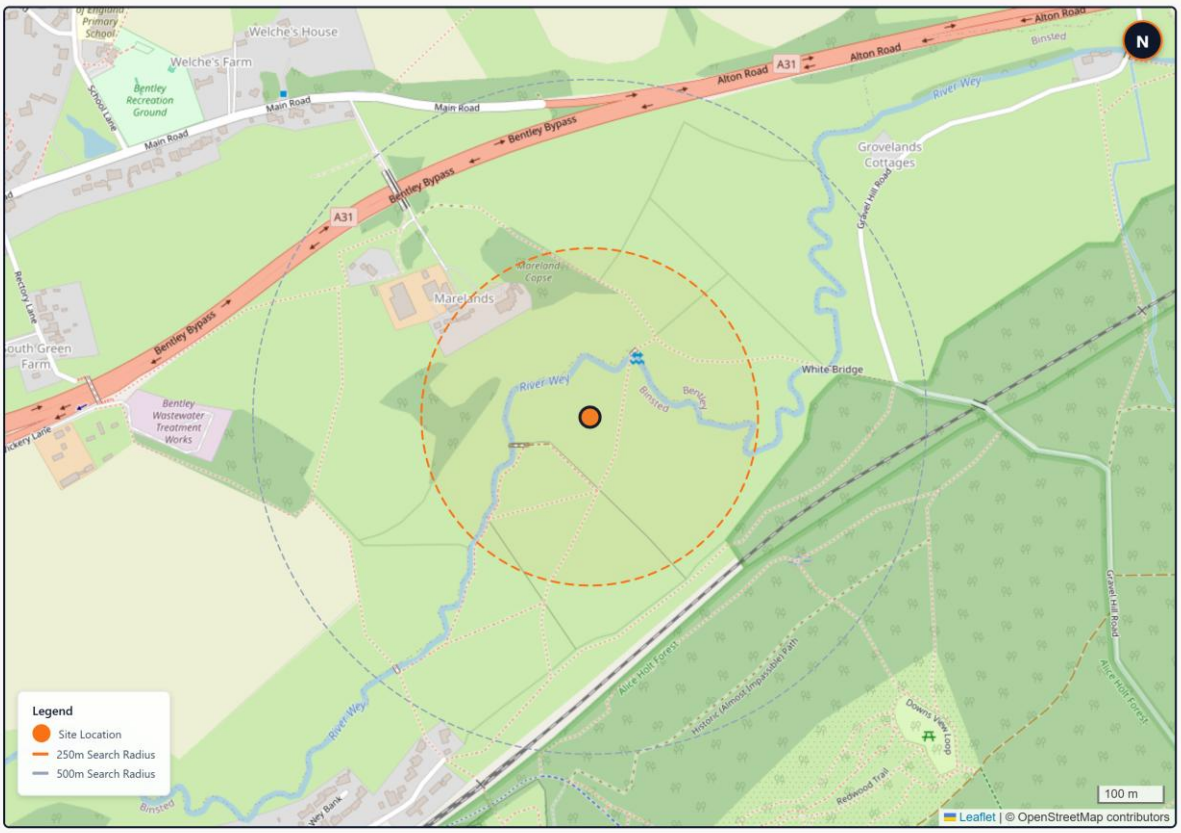

Figure 1.1 — Site location plan (contains OS data © Crown copyright)

1.1 The Proposed Development

The proposal comprises the erection of 4 detached dwellings on the southern (pink) land parcel of the The Oaks site. The pink parcel extends to approximately 0.6–0.75 ha and is currently in use as garden/paddock land. There are no existing buildings on the pink parcel.

The 1938 conveyance permits a maximum of 4 private dwelling houses with usual outbuildings on the pink parcel. The development therefore uses the full covenant capacity of this land.

Parameter	Detail
Site	Hole Lane, Bentley, Farnham, Hampshire GU10 5XX
Development parcel	Southern (pink) parcel — approx. 0.6–0.75 ha
Proposal	4 detached dwellings (C3 use class)
Estimated GIA per dwelling	120–150 m²
Total proposed GIA	480–600 m²
Existing floorspace on site	0 m² (garden/paddock land)
Client	Private Developer Client
LPA	East Hampshire District Council
Planning status	Pre-application — no permission yet granted

2. LPA CIL STATUS

East Hampshire District Council has adopted a CIL Charging Schedule. The schedule was adopted on 25 February 2016 and took effect on 8 April 2016. CIL applies to all qualifying development within the EHDC area outside the South Downs National Park.

2.1 Charging Schedule Summary

Parameter	Detail	Source
CIL adopted?	YES	EHDC website — VERIFIED
Adoption date	25 February 2016	EHDC CIL Charging Schedule — VERIFIED
Effective date	8 April 2016	EHDC CIL Charging Schedule — VERIFIED
Charging authority	EHDC (outside SDNP)	EHDC website — VERIFIED
Index at adoption (Ic)	271	EHDC CIL calculation page — VERIFIED
Current index (Ip, 2026)	400	RICS CIL Index 2026 — VERIFIED
Instalment policy	YES — adopted under Regulation 69B	EHDC CIL calculation page — VERIFIED
Mayoral CIL	N/A — not in London	—

2.2 EHDC CIL Residential Zones

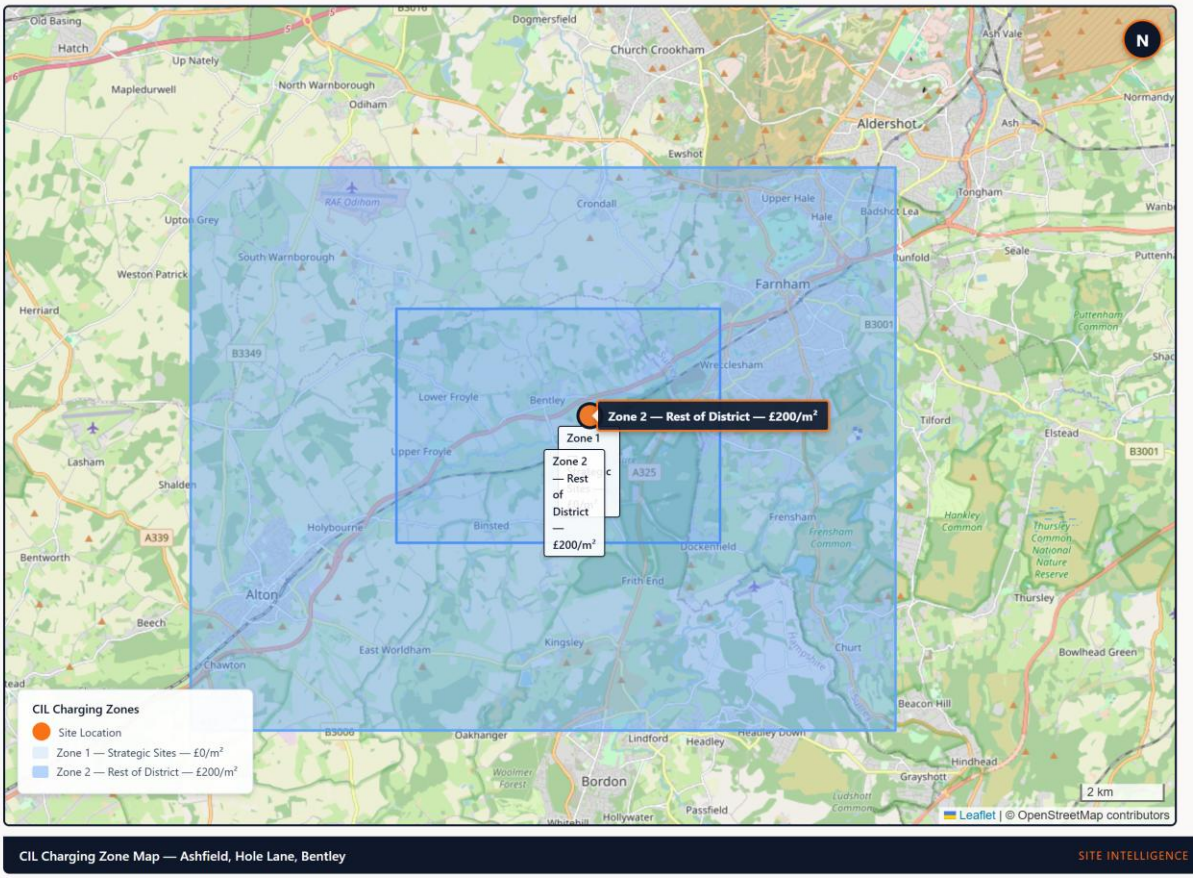

Figure 2.1 — EHDC CIL Residential Charging Zones

EHDC operates five residential charging zones with rates ranging from £0 to £200 per m² (before indexation). One zone applies a differential rate based on development size: £200/m² for small developments (1–10 units) and £180/m² for larger schemes.

Zone	Base Rate	Notes
Highest value (small dev, 1–10 units)	£200/m²	Applies to this proposal (4 dwellings)
Highest value (large dev, 11+ units)	£180/m²	Not applicable — 4 units below threshold
High value	£150/m²	Alternative zone — see confidence note
Medium value	£110/m²	—
Lower value	£65/m²	—
Nil rate	£0/m²	Typically strategic allocation sites
Sheltered housing (C3A)	£40/m²	Not applicable
Residential institutions / extra care	£0/m²	Not applicable

Zone	Base Rate	Notes

Zone Assignment — Confidence Note

Bentley is a high-value rural parish in East Hampshire, outside the SDNP, with average house prices significantly above the district median. Based on the EHDC viability evidence and zone structure, Bentley is assessed as falling within the highest residential charging zone (£200/m² for small developments).

CONFIDENCE: SUPPORTED. The zone assignment is based on viability evidence, property values, and the charging schedule structure. The exact zone should be confirmed with EHDC's CIL team or via the council's interactive mapping tool before submitting the planning application.

SENSITIVITY: If Bentley is in the £150/m² zone rather than the £200/m² zone, the central liability would reduce from £159,408 to approximately £119,556.

3. CIL APPLICABILITY ASSESSMENT

CIL is triggered when development creates net additional floorspace of 100 m² GIA or more, OR creates one or more new dwellings (regardless of size). This section systematically checks whether CIL applies to the proposed development.

3.1 Applicability Decision Tree

Test	Criteria	Result	Reasoning
LPA CIL Adopted?	EHDC has an adopted Charging Schedule	YES	Charging Schedule adopted 25 Feb 2016, effective 8 Apr 2016
New Dwellings Created?	Does the development create new dwellings?	YES — 4 dwellings	4 new detached dwellings on garden/paddock land. CIL triggered regardless of floor area
100 m² GIA Threshold?	Net additional GIA ≥ 100 m²?	YES	Proposed GIA: 480–600 m². Zero existing GIA to offset. Significantly exceeds threshold
HMO Conversion?	Is this an HMO conversion?	NO	New-build C3 dwellings — not a conversion
Retrospective (s73A)?	Is this a retrospective application?	NO	Pre-application stage — no existing permission

3.2 Applicability Verdict

CIL Verdict: FULLY LIABLE

CIL applies to this development on TWO independent grounds:

(a) 4 new dwellings are created — CIL is triggered regardless of floor area;

(b) Net additional GIA of 480–600 m² significantly exceeds the 100 m² threshold.

There is no existing floorspace on the pink parcel to offset against the proposed GIA. The full proposed GIA is chargeable.

4. RATE ANALYSIS

4.1 Index-Linking Calculation

CIL Regulation 40 mandates that published rates are index-linked annually using the RICS CIL Index (formerly BCIS All-in Tender Price Index for pre-2020 permissions). The formula is:

Indexed Rate = Published Rate × (Ip ÷ Ic)

Component	Value	Source
Published base rate (residential)	£200/m²	EHDC Charging Schedule — highest zone, small development (1–10 units)
Ic (index at adoption, 2016)	271	EHDC CIL calculation page — VERIFIED
Ip (current index, 2026)	400	RICS CIL Index, published 27 October 2025 — VERIFIED
Indexed rate	£295.20/m²	200 × 400 ÷ 271 = £295.20

The indexed rate of £295.20/m² represents a 47.6% increase from the 2016 base rate, reflecting construction cost inflation over the 10 years since the charging schedule was adopted.

4.2 Regional Rate Comparison

For context, the following table compares EHDC's indexed residential CIL rate with neighbouring and comparable LPAs. This demonstrates that EHDC's rate is in the mid-to-upper range for the South East.

LPA	Base Rate	Indexed Rate (2026 est.)	Notes
EHDC (highest zone, small dev)	£200/m²	£295.20/m²	This assessment
EHDC (£150 zone, if applicable)	£150/m²	£221.40/m²	Sensitivity check
Waverley (standard, 1–10 units)	£452/m²	£559.75/m²	Neighbouring LPA — highest in region
Surrey Heath (Zone A)	£220/m²	£339.77/m²	Neighbouring LPA
Guildford	N/A	N/A	CIL NOT ADOPTED — S106 only

Note: Waverley Borough Council (which adjoins EHDC to the west) has one of the highest CIL rates in Surrey. EHDC's rate is lower than Waverley's but higher than the district average for the South East. Guildford is the only council in Surrey that has not adopted CIL.

5. CHARGEABLE FLOOR AREA CALCULATION

The net chargeable area is calculated under CIL Regulation 40: proposed GIA minus existing lawful GIA where Regulation 40 credit applies.

5.1 Proposed GIA

The proposed development comprises 4 detached dwellings with estimated GIA of 120–150 m² each. At this pre-application stage, floor areas are indicative and will be refined at detailed design. The assessment presents three GIA scenarios:

Scenario	GIA per Dwelling	Total Proposed GIA	Basis
Low	120 m²	480 m²	Compact 3-bed detached — minimum for market expectations in Bentley
Central	135 m²	540 m²	Mid-range 4-bed detached — consistent with local comparables
High	150 m²	600 m²	Generous 4-bed detached — maximising value in high-value location

5.2 Existing Lawful GIA

The pink (south) parcel is currently garden/paddock land with no existing buildings. There is therefore no existing lawful GIA to deduct.

Existing Use Credit: NOT AVAILABLE

Regulation 40(7) requires 6 months continuous lawful use in the preceding 36 months. As there are no buildings on the development parcel, no existing use credit is available.

The FULL proposed GIA is chargeable.

5.3 Net Chargeable Area

Component	Low	Central	High
Proposed GIA	480 m²	540 m²	600 m²
Existing lawful GIA	0 m²	0 m²	0 m²
Net chargeable area	480 m²	540 m²	600 m²

6. EXEMPTION AND RELIEF ANALYSIS

This section systematically checks all 7 categories of CIL exemption and relief. For each category, eligibility is assessed, evidence requirements noted, and clawback risks identified.

Exemption / Relief	Eligible?	Evidence Required	Clawback Risk	Notes
Self-build (Reg 54A–54D)	POTENTIALLY	Self-build register entry, land ownership, intent to occupy	3-year clawback if sold	See detailed analysis below — requires careful structuring
Social housing (Reg 49–49H)	NO	N/A	N/A	Private market development — no affordable housing provider
Charitable (Reg 43–48)	NO	N/A	N/A	Not a charitable institution or purpose
Residential annexe (Reg 42A–42B)	NO	N/A	N/A	New dwellings, not annexes to existing dwelling
Minor development (<100 m²)	NO	N/A	N/A	GIA (480–600 m²) far exceeds 100 m² threshold
Exceptional circumstances (Reg 55–57)	UNLIKELY	Full viability assessment	N/A	Discretionary — EHDC has adopted policy but rarely granted. Market-value Bentley site unlikely to demonstrate unviability
Phased permission	STRATEGIC OPTION	N/A	N/A	Not an exemption — but can defer liability. See Section 10

6.1 Self-Build Exemption — Detailed Analysis

The self-build exemption under CIL Regulation 54A–54D is the only realistic route to reduce or eliminate CIL liability for this development. However, the client's position as a developer (not an owner-occupier) creates significant structural challenges.

Self-Build Exemption Requirements:

- **Occupation:** Each dwelling must be occupied as the claimant's sole or main residence for a minimum of 3 years after completion
- **Register:** The claimant must be registered on the local authority self-build register BEFORE commencement
- **Timing:** The exemption claim must be submitted and approved BEFORE any works commence on site
- **Clawback:** If the dwelling is sold, let, or the claimant ceases to occupy within 3 years of completion, the FULL CIL liability is clawed back (Regulation 54D)

Developer Self-Build Structuring — Key Considerations

The client is a developer, not a self-builder. The self-build exemption requires the claimant to occupy the dwelling as their sole or main residence. This means:

(a) The client cannot claim self-build exemption personally unless they intend to live in one of the four dwellings for 3 years after completion.

(b) If the plots are sold to individual self-builders BEFORE planning permission is granted, each purchaser could claim self-build exemption on their own dwelling.

(c) If planning permission is granted first, then plots sold, the self-build exemption window is narrower — exemption must be claimed before commencement of each dwelling.

Luck v Bracknell Forest [2025] WARNING: A disqualifying event (sale) can occur at ANY time — even during construction. The council has NO discretion to waive CIL. Self-build relief of £334,000 was lost in that case because the owner sold before completing.

Recommended Structuring Options:

- **Option A — Sell plots pre-commencement:** Sell plots with planning permission to individual self-builders who will register on EHDC's self-build register and claim exemption before commencing. This transfers both the exemption benefit and the clawback risk to the purchaser.
- **Option B — Build-to-sell (standard developer):** If the client wishes to build and sell the completed dwellings, self-build exemption is NOT available. CIL must be paid in full.
- **Option C — Partial self-build:** If the client intends to occupy one dwelling personally, they could claim self-build on that one unit only. The remaining 3 dwellings would attract full CIL.

7. CIL LIABILITY ESTIMATE

This section presents the full CIL liability calculation with Low / Central / High confidence bands. All calculations use the indexed rate derived in Section 4.

7.1 Calculation Workings

CIL Liability = Net Chargeable Area × Indexed Rate (£295.20/m²)

Scenario	Net Chargeable Area	Indexed Rate	Total Liability	Per Dwelling
Low	480 m²	£295.20/m²	£141,696.00	£35,424.00
Central	540 m²	£295.20/m²	£159,408.00	£39,852.00
High	600 m²	£295.20/m²	£177,120.00	£44,280.00

7.2 Liability Summary

CIL Liability Range

Low estimate: £141,696 (based on 4 × 120 m² dwellings)

Central estimate: £159,408 (based on 4 × 135 m² dwellings)

High estimate: £177,120 (based on 4 × 150 m² dwellings)

Per dwelling (central): £39,852

7.3 Sensitivity Analysis

The liability is sensitive to two key variables: the confirmed zone rate and the final GIA at detailed design. The table below shows how the liability changes across these scenarios.

Zone Rate	Indexed Rate	Low (480 m²)	Central (540 m²)	High (600 m²)
£200/m² (assumed)	£295.20/m²	£141,696	£159,408	£177,120
£150/m² (sensitivity)	£221.40/m²	£106,272	£119,556	£132,840
£110/m² (sensitivity)	£162.36/m²	£77,933	£87,674	£97,416

RECOMMENDATION: Confirm the exact CIL charging zone for Bentley with EHDC's Developer Contributions team or via their interactive mapping tool BEFORE finalising the development appraisal. The zone assignment represents the single largest variable in the CIL calculation.

8. PAYMENT AND COMPLIANCE

8.1 CIL Forms and Deadlines

The following forms must be submitted to EHDC. The order and timing are critical — missing any deadline can result in surcharges or loss of instalment rights.

Form	Purpose	When	Consequence of Missing
Form 1 — Additional Info	CIL information with planning application	WITH the planning application	Application may be invalid; delays
Form 2 — Assumption of Liability	Declare who will pay CIL	BEFORE commencement	20% surcharge (Reg 80); loss of instalment rights
Form 6 — Commencement Notice	Notify council of start date	BEFORE any works on site	20% surcharge (Reg 83); deemed commencement
Form 7 Part 1 — Self-Build	Claim self-build exemption	BEFORE commencement (if applicable)	Full CIL liability applies
Form 7 Part 2 — Self-Build Completion	Evidence of occupation	Within 6 months of completion	Exemption clawed back

8.2 What Constitutes Commencement

For CIL purposes, commencement means any material operation under s56 TCPA 1990. This includes ANY of the following — even works the client considers "preparatory":

- Demolition of existing structures
- Site clearance or vegetation removal
- Digging foundations, trenches, or trial pits
- Laying drainage or service runs
- Pouring concrete
- Erecting hoarding, scaffolding, or site fencing

CRITICAL: Submit ALL Forms Before ANY Works

The most common and most expensive CIL mistake is starting work before submitting forms. ALL forms (Form 2, any exemption/relief claims, and Form 6) must be submitted and acknowledged BEFORE any physical works commence on site.

Even tree clearance, fencing, or site investigation works could constitute commencement. If in doubt, submit forms first.

8.3 Instalment Policy

EHDC has adopted a CIL instalment policy under Regulation 69B. This allows developers to pay CIL in instalments rather than in a single payment, provided Form 2 (Assumption of Liability) and Form 6 (Commencement Notice) are submitted before commencement.

Without these forms, the FULL CIL amount becomes payable immediately on commencement with no right to pay in instalments.

The exact instalment schedule and thresholds should be confirmed with EHDC's Developer Contributions team. Typical council instalment policies allow payment over 12–24 months for liabilities in this range.

8.4 Surcharge Exposure

The table below shows the worst-case surcharge exposure if CIL compliance procedures are not followed. These surcharges stack — a developer who starts work without submitting forms could face 40%+ on top of the base CIL liability.

Failure	Regulation	Surcharge	Amount (on high estimate)
No Assumption of Liability (Form 2)	Reg 80	20% of liability	£35,424.00
No Commencement Notice (Form 6)	Reg 83	20% of liability	£35,424.00
Late payment (90 days overdue)	Reg 85	5% of unpaid amount	£8,856.00
Interest (90 days at 7.0% p.a.)	Reg 87	BoE rate + 2.5%	£3,057.14
TOTAL WORST-CASE EXPOSURE	—	—	£259,881.14

9. SECTION 106 AND CIL INTERACTION

Section 106 obligations are negotiated separately from CIL and may apply in addition to CIL. In EHDC, the Infrastructure Funding Statement sets out which infrastructure types are funded by CIL and which by S106.

9.1 Potential S106 Obligations

Obligation	Applicable?	Estimated Cost	Notes
Affordable housing	NO	N/A	Below 10-unit threshold (NPPF ¶65). JCS Policy CP14 requires 40% on 15+ units
SANG / SAMM (SPA mitigation)	NO	N/A	Site is ~7.5–8 km from Thames Basin Heaths SPA and Wealden Heaths SPA — outside 5 km ZoI
Education contributions	POSSIBLY	£5,000–£20,000	HCC may seek education contributions for 4 family dwellings via S106 — depends on local school capacity
Open space / play provision	POSSIBLY	£2,000–£10,000	EHDC may seek on-site or off-site contribution for 4 dwellings
Highways / transport	UNLIKELY	N/A	Minor development on existing access road. HCC did not object to the previous single-dwelling PiP on highway grounds
Ecology / BNG	POSSIBLY	£5,000–£15,000	10% biodiversity net gain may require off-site BNG credits if on-site delivery is insufficient

9.2 Combined Developer Contribution Estimate

Component	Low Estimate	High Estimate
CIL (this assessment)	£141,696	£177,120
S106 — education	£0	£20,000
S106 — open space	£0	£10,000
S106 — BNG credits	£0	£15,000
TOTAL DEVELOPER CONTRIBUTIONS	£141,696	£222,120

CIL typically represents the largest single developer contribution for this type of development. S106 obligations are negotiable and may be reduced or removed through the pre-application process.

10. STRATEGIC ALTERNATIVES TO REDUCE CIL

This section identifies lawful strategies to reduce or manage CIL exposure. These strategies should be considered at the pre-application stage before design and commercial decisions are fixed.

10.1 Strategy A — Self-Build Plot Sales

Sell serviced plots with planning permission to individual self-builders. Each purchaser registers on EHDC's self-build register and claims exemption on their own dwelling. This eliminates CIL entirely (subject to each purchaser maintaining 3-year occupation).

- **CIL saving:** Potential saving: £159,408 (full CIL elimination)
- **Risk transfer:** Clawback risk sits with the plot purchaser, not with the client
- **Trade-off:** Plot sales may achieve lower GDV than completed house sales
- **Market context:** EHDC has a large self-build register deficit (512 entries in 2018–19 vs only 93 permissions) — strong local demand

10.2 Strategy B — Reduce Dwelling Size

Reducing dwelling GIA directly reduces CIL liability (which is charged per m²). However, dwellings in Bentley's premium market need to be competitively sized.

Scenario	GIA per Dwelling	Total CIL	CIL Saving vs Central
4 × 100 m² (3-bed compact)	100 m²	£118,080	−£41,328
4 × 120 m² (3-bed standard)	120 m²	£141,696	−£17,712
4 × 135 m² (central estimate)	135 m²	£159,408	—
4 × 150 m² (4-bed generous)	150 m²	£177,120	+£17,712

10.3 Strategy C — Reduce Number of Dwellings

Fewer dwellings means less total GIA and lower CIL. The covenant permits up to 4 dwellings, but fewer may actually be more profitable when CIL is factored in.

Scheme	Total GIA	Total CIL	CIL per Dwelling
2 dwellings × 180 m²	360 m²	£106,272	£53,136
3 dwellings × 150 m²	450 m²	£132,840	£44,280
4 dwellings × 135 m² (central)	540 m²	£159,408	£39,852

A 2-dwelling scheme at 180 m² each (the concept-feasibility recommended option) would reduce total CIL from £159,408 to £106,272 — a saving of £53,136.

10.4 Strategy D — Phased Planning Permission

If the development is split into phases (e.g. 2 dwellings per phase), each phase is treated as a separate chargeable development. This does not reduce total CIL but spreads the payment timeline and may benefit cash flow.

10.5 Strategy E — Interior Works Exemption (Reg 6(1)(c))

NOT APPLICABLE — this is new-build development, not conversion or refurbishment. The Regulation 6(1)(c) interior works exemption (confirmed in Orbital v Swindon [2016]) only applies where planning permission affects ONLY the interior of an existing building.

11. KNOWN LIMITATIONS AND ASSUMPTIONS

Known Limitations & Assumptions

This section identifies the boundaries of this assessment, data limitations, and assumptions that underpin the conclusions. Each item states what could change if the assumption proves incorrect.

What This Report Does NOT Assess

- This assessment does not constitute legal advice on CIL liability disputes or appeals. It does not assess South Downs National Park CIL (the site is outside the SDNP boundary).

11.1 Verification Status Summary

Claim	Confidence	Source	Notes
CIL adoption status	VERIFIED	EHDC website	Adopted 25 Feb 2016, effective 8 Apr 2016
Ic (index at adoption)	VERIFIED	EHDC CIL calculation page	Ic = 271 (confirmed from EHDC website)
Ip (current index)	VERIFIED	RICS CIL Index 2026	Ip = 400 (published 27 Oct 2025)
Base rate (£200/m²)	SUPPORTED	EHDC Charging Schedule	Highest zone for small dev (1–10 units). Zone assignment for Bentley needs confirmation
Existing use credit	VERIFIED	Project details	No existing buildings on pink parcel — no credit
Proposed GIA	ASSUMED	Pre-application estimate	120–150 m²/dwelling — will change at design
Instalment policy	VERIFIED	EHDC website	Policy exists — specific schedule not confirmed
S106 estimates	ASSUMED	Professional estimate	Directional only — negotiable

Next Steps

Confirm the CIL charging zone for Bentley with EHDC's Developer Contributions team (phone: 01730 234178 or email: planning@example-council.gov.uk). Request the zone map or use the council's interactive mapping tool.

Request EHDC's current CIL instalment policy schedule to understand payment timing.

Decide on the commercial strategy: (A) sell plots to self-builders (CIL eliminated), (B) build and sell completed houses (full CIL applies), or (C) hybrid approach.

If pursuing self-build route, obtain legal advice on structuring to avoid the Luck v Bracknell clawback risk.

Budget £159,408 for CIL in the development appraisal (central estimate). If zone is confirmed at £150/m², revise to £119,556.

Submit CIL Form 1 (Additional Information) with the planning application.

Ensure Form 2 (Assumption of Liability) and Form 6 (Commencement Notice) are submitted BEFORE any works commence on site — including tree clearance or fencing.

Important: Limitations, Disclaimers and Conditions of Use

Clause 1: Named Client and Reliance Restriction

This report has been prepared by PF & Co Construction Ltd (trading as "Site Intelligence") for the sole and exclusive use of Private Developer Client ("the Client") in connection with the project described herein at Hole Lane, Bentley, Farnham, Hampshire GU10 5XX ("the Site").

This report has been prepared for the Client only. No other person or entity may use or rely upon this report, or any part of it, without the prior written consent of PF & Co Construction Ltd. Any such consent, if given, may be subject to conditions including the payment of additional fees and the execution of a formal reliance letter or collateral warranty.

Any party other than the Client who obtains access to this report, or any part of it, does so entirely at their own risk. PF & Co Construction Ltd owes no duty of care to any such party and accepts no responsibility or liability whatsoever, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, to any person or entity other than the Client in respect of the contents of this report.

Clause 2: Purpose Limitation

This report has been prepared for the specific purpose described herein and should not be used for any other purpose. PF & Co Construction Ltd accepts no responsibility for the use of this report, or any information contained within it, for a purpose other than that for which it was commissioned.

Without limitation, this report should not be used in connection with any transaction, valuation, investment decision, or insurance assessment unless PF & Co Construction Ltd has given its prior written consent and has been provided with relevant details of the intended use.

Clause 3: Third-Party Exclusion

The rights of any third party to rely upon or enforce any term of this report, or any benefit arising from it, are expressly excluded under the Contracts (Rights of Third Parties) Act 1999.

No term of this report is intended to be enforceable by any person who is not a party to the engagement under which this report was prepared. Should any third party wish to rely upon the contents of this report, they must first obtain written confirmation from PF & Co Construction Ltd, which may be subject to conditions and additional fees.

Clause 4: Information Reliance

In preparing this report, PF & Co Construction Ltd has relied upon information provided by the Client and/or obtained from publicly available sources, including but not limited to government databases, local authority records, statutory registers, and mapping services. PF & Co Construction Ltd has not independently verified the accuracy, completeness, or currency of such information unless expressly stated otherwise.

PF & Co Construction Ltd accepts no liability for any inaccuracy, omission, or error in information provided by the Client or obtained from third-party sources. Where this report identifies specific data sources, the data confidence and any known limitations are noted.

Clause 5: Limitations of Investigation

This report is based on desktop CIL liability assessment carried out on or before March 2026. The scope of investigation is described in the body of this report and should be read in full.

Ground conditions, environmental factors, regulatory requirements, planning policy, and site circumstances may change over time. The findings, opinions, and recommendations contained in this report reflect the conditions and information available at the date of issue and may not remain valid indefinitely.

This report must be read in its entirety. No individual section, extract, table, or figure should be taken in isolation or relied upon without reference to the report as a whole, including all caveats, qualifications, and limitations stated herein.

Clause 6: Professional Advice Caveat

This report provides professional assessment and guidance based on the information available at the time of preparation. Every project and every site is unique. The Client should obtain advice specific to their circumstances before making decisions that may have financial, legal, structural, or safety implications.

PF & Co Construction Ltd is a qualified structural engineering and construction consultancy. The opinions expressed in this report represent the professional judgment of qualified engineers exercising reasonable skill and care. They do not constitute legal advice, financial advice, insurance advice, or advice from any other regulated profession.

Where this report identifies matters outside the expertise of PF & Co Construction Ltd (including but not limited to specialist heritage impact assessment, ecological survey, full hydraulic modelling, or contaminated land assessment), the Client should engage appropriately qualified specialists.

Clause 7: No Guarantee of Outcome

The assessments, opinions, and recommendations contained in this report represent the professional judgment of the author based on the information available at the date of issue. They do not constitute a guarantee or warranty of any particular outcome, whether in respect of planning permission, Building Control approval, structural performance, ground conditions, flood risk, or any other matter.

Where this report expresses a view on the likelihood of a particular outcome (for example, the prospect of obtaining planning permission or the probability of flooding), such views are professional opinions based on available evidence and experience. They are not predictions and should not be treated as such.

Clause 8: AI Assistance Disclosure

PF & Co Construction Ltd uses a range of professional tools and technologies in the preparation of its reports. These may include artificial intelligence (AI) software to assist with data gathering, research, analysis, and document preparation.

All outputs from any AI-assisted processes are reviewed, verified, and approved by a qualified engineer before inclusion in this report. The professional opinions, conclusions, and recommendations expressed herein are those of PF & Co Construction Ltd, not of any software system or AI tool.

The use of AI-assisted tools does not diminish or alter the standard of reasonable skill and care applied by PF & Co Construction Ltd in the preparation of this report. PF & Co Construction Ltd retains full professional responsibility for the contents of this report, and no responsibility is transferred to any technology provider.

Clause 9: Data Completeness Caveat

This report draws upon publicly available data from government agencies, statutory bodies, and other sources. Public datasets may contain gaps in coverage, may not be updated in real time, and may not capture all relevant local conditions.

Where data limitations or gaps have been identified during the preparation of this report, they are noted in the relevant sections. The absence of a recorded constraint, hazard, or designation does not confirm that no such constraint, hazard, or designation exists. It confirms only that no record was found in the sources consulted at the date of access.

Data access dates are recorded in this report. Where significant time has elapsed since the data was accessed, the Client should consider whether updated information may be available.

Clause 10: Limitation of Liability

(a) PF & Co Construction Ltd has exercised reasonable skill and care in the preparation of this report in accordance with the standards reasonably to be expected of a competent structural engineering consultancy undertaking work of a similar scope and nature.

(b) Nothing in this clause or in this report shall exclude or limit the liability of PF & Co Construction Ltd for death or personal injury caused by its negligence, or for fraud or fraudulent misrepresentation.

(c) Subject to sub-clause (b), the liability of PF & Co Construction Ltd arising out of or in connection with this report, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, shall not exceed £10,000,000 (ten million pounds sterling) in respect of any one claim or series of claims arising out of any one event or related series of events. This cap is not reduced by any excess or deductible applicable under the Consultant's professional indemnity insurance policy.

(d) Subject to sub-clause (b), PF & Co Construction Ltd shall not be liable for any of the following, whether arising in contract, tort (including negligence), breach of statutory duty, or otherwise:

- loss of profit;
- loss of revenue;
- loss of anticipated savings;
- loss of business or business opportunity;
- loss of goodwill;
- loss of use of any property or asset;
- increased cost of working;
- wasted expenditure (other than fees paid directly to PF & Co Construction Ltd for this report);
- any other indirect, special, or consequential loss or damage.

(e) The liability of PF & Co Construction Ltd shall be limited to such sum as is just and equitable having regard to the extent of PF & Co Construction Ltd's responsibility for the loss or damage in question, on the assumption that all other consultants, contractors, sub-contractors, and advisers involved in the project have provided contractual undertakings to the Client on terms no less onerous than those set out herein and have paid to the Client such sums as they are liable to pay.

(f) Sub-clauses (c), (d), and (e) shall not apply to any liability arising under section 1 of the Defective Premises Act 1972, to the extent that such liability cannot lawfully be excluded or restricted by virtue of section 6(3) of that Act. PF & Co Construction Ltd reserves all rights to seek contribution from any other person responsible for the loss or damage under the Civil Liability (Contribution) Act 1978.

(g) This report should not be the sole basis for any property purchase, investment, or development decision. The Client should obtain independent legal, valuation, and environmental advice as appropriate to the nature of the decision being made.

Clause 11: Copyright and Intellectual Property

(a) Copyright and all other intellectual property rights in this report, including but not limited to the text, calculations, drawings, diagrams, maps, tables, scoring methodologies, and report templates, are and shall remain the property of PF & Co Construction Ltd.

(b) PF & Co Construction Ltd grants to the Client a non-exclusive, non-transferable licence to use this report for the specific purpose for which it was commissioned, including:

- reproducing the report for the purposes of obtaining planning permission, Building Control approval, and construction of the project described herein;
- sharing the report with the Client's other appointed consultants, contractors, and statutory authorities in connection with the project.

(c) This licence is conditional upon the full payment of all fees due to PF & Co Construction Ltd in connection with this report. If fees remain outstanding, the licence shall not come into effect, and the Client shall have no right to use, reproduce, or distribute this report.

(d) The Client shall not, without the prior written consent of PF & Co Construction Ltd:

- modify, adapt, or alter this report or any part of it;
- use this report for any project other than that for which it was commissioned;
- assign, transfer, or sub-license the right to use this report to any third party (including a subsequent purchaser or tenant of the property);
- remove or obscure any copyright notice, branding, or attribution contained in this report.

(e) PF & Co Construction Ltd's background intellectual property (including proprietary methodologies, scoring systems, report templates, and software tools) remains the exclusive property of PF & Co Construction Ltd and is not transferred or licensed to the Client.

Clause 12: Statutory Authority Submission Note

Where this report is submitted to a Local Planning Authority, Building Control body, the Environment Agency, a Lead Local Flood Authority, or any other statutory or regulatory authority, it is provided for that authority's information and independent assessment.

PF & Co Construction Ltd does not warrant that any statutory authority will accept the findings of this report. Each authority is responsible for exercising its own professional judgment and for determining compliance with applicable legislation, policy, and standards. The submission of this report to a statutory authority does not confer any right of reliance upon PF & Co Construction Ltd by that authority, its officers, or its agents.

The statutory authority may require additional information, investigation, modelling, or assessment beyond the scope of this report. PF & Co Construction Ltd accepts no responsibility for any additional requirements imposed by a statutory authority.

Clause 13: Mortgage, Valuation and Subsequent Purchaser Exclusion

This report has not been prepared for the purpose of mortgage valuation, property valuation, insurance assessment, or any transaction involving the purchase, sale, or financing of the property.

This report is not suitable for use as, or as a substitute for, a mortgage valuation, Home Buyer Report, Building Survey, or any other valuation or survey product. PF & Co Construction Ltd accepts no liability to any mortgage lender, valuer, insurer, subsequent purchaser, tenant, or other party who may use or rely upon this report in connection with a property transaction.

Any subsequent purchaser or new owner of the property should commission their own independent assessment. Findings contained in this report may not remain valid or applicable to changed circumstances, altered proposals, or the passage of time.

Clause 14: Report Validity Period

The findings, opinions, and recommendations contained in this report are based on the conditions and information available at the date of issue. Unless otherwise stated in the body of this report, the findings should be considered valid for a period of twelve (12) months from the date of issue.

After the expiry of this period, or where material changes to the site, the proposal, the regulatory framework, or the available data have occurred, PF & Co Construction Ltd recommends that the Client commission an updated assessment. PF & Co Construction Ltd accepts no liability for reliance on this report after the expiry of its validity period or following material changes in circumstances.

Clause 15: Governing Law and Jurisdiction

This report, and any dispute or claim arising out of or in connection with it (including non-contractual disputes or claims), shall be governed by and construed in accordance with the laws of England and Wales.

The courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this report.

Clause 16: Not Financial, Quantity Surveying, or Valuation Advice

Where this report contains cost estimates, budget figures, indicative pricing, infrastructure levy calculations, or other financial information, such figures are preliminary order-of-magnitude estimates for feasibility and planning purposes only. They do NOT constitute financial advice, quantity surveying, formal cost planning, a quotation, or a tender.

All cost estimates must be verified by appropriately qualified professionals (including but not limited to chartered quantity surveyors, contractors providing formal tenders, and financial advisers) before the Client enters into any financial commitment, contract, mortgage arrangement, or investment decision.

PF & Co Construction Ltd expressly excludes liability for any loss arising from decisions made in reliance on cost estimates contained in this report, including but not limited to budget overruns, construction cost increases, funding shortfalls, or abortive expenditure.

Clause 17: Terms of Engagement

This report is issued subject to PF & Co Construction Ltd's General Terms and Conditions of Engagement, a copy of which has been provided to the Client or is available on request. In the event of any conflict between the terms of this report and the General Terms and Conditions, the General Terms and Conditions shall prevail.

The Client's instruction to proceed with the commission constitutes acceptance of these Terms and Conditions.

Additional Limitations Specific to This CIL Liability Assessment

CIL.1 — Not Formal Legal Advice. This CIL Liability Assessment has been prepared to assist the Client with understanding their potential CIL obligations. It does not constitute formal legal advice. The applicability of CIL to specific developments can involve matters of legal interpretation on which professional legal advice should be sought where the financial exposure is material or where the local planning authority disputes the position set out herein. For CIL appeal proceedings before the Valuation Tribunal, specialist legal counsel should be instructed.

CIL.2 — Charging Schedule Currency. CIL charging schedules, BCIS index values, and RICS CIL Index figures are subject to periodic revision. The rates and index values cited in this report are those current at the date of issue. The Client should verify that the rates and index values remain current at the time of any formal submission to the collecting authority. PF & Co Construction Ltd accepts no liability for any change in rates, indices, or instalment policies occurring after the date of this report.

CIL.3 — Exemption Procedural Compliance. Where this report identifies potential CIL exemptions or reliefs (including self-build exemption under Regulation 54A, social housing relief, charitable relief, or annexe exemption), these require strict procedural compliance before commencement of development. Failure to submit the required forms in the correct sequence and before the relevant statutory deadlines may forfeit exemption rights entirely and result in the full CIL liability becoming payable, plus surcharges. PF & Co Construction Ltd accepts no liability for any failure to follow the correct exemption procedure.

CIL.4 — LPA Interpretation Risk. The applicability of CIL to deconversions, amalgamations, and HMO conversions involves matters of legal interpretation on which local planning authorities and collecting authorities may differ. Where this report concludes that CIL is unlikely to apply, this reflects our professional assessment based on the CIL Regulations, CIL Manual, and the specific facts of the case. It does not guarantee that the collecting authority will reach the same conclusion. If a CIL Liability Notice is issued, the Client should seek specialist CIL advice before making any payment or commencing any appeal.

Enhanced Advisory Note

This report identifies moderate risk factors that warrant careful consideration. The recommendations contained herein should be treated as priority actions. PF & Co Construction Ltd advises that binding commitments relating to the subject property or development should account for the identified risks and the potential need for further specialist investigation as recommended in the body of this report.

Prepared by:

Site Intelligence, PF & Co Construction Ltd

CIL Liability Assessment

For and on behalf of:

Site Intelligence

A PF & Co Construction Ltd service

Date of issue: March 2026

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